



School Management System

DATA PROCESSING AGREEMENT (DPA)

Standard Contractual Clauses & Compliance Addendum
Under the Ghana Data Protection Act, 2012 (Act 843)

SOFTWARE OWNER & PROPRIETOR

Mr. Oheneba Michael Baah

PUBLISHED & MAINTAINED BY OHENEBA MEDIA

Official Compliance Document | Version 2026.1

DATA PROCESSING ADDENDUM (DPA)

Effective Date: June 25, 2026

This Data Processing Agreement ("DPA") is entered into by and between the Client School (hereinafter referred to as the "Controller") and Oheneba Media, represented by its proprietor Mr. Oheneba Michael Baah (hereinafter referred to as the "Processor").

This DPA supplements the main Skoola Service Agreement and governs the processing of personal data by the Processor on behalf of the Controller. Both parties agree to the terms below to ensure compliance with the Data Protection Act, 2012 (Act 843) of Ghana.

SECTION 1

PURPOSE & APPLICABILITY

1.1 The purpose of this DPA is to govern the processing of all personal data entered and stored on the Skoola platform. This includes student records, parent contact details, and staff profiles.

1.2 This DPA applies to all processing operations performed by the Processor to deliver the SaaS subscription service as configured in the Service Agreement.

SECTION 2

DEFINITIONS & INTERPRETATION

2.1 'Act 843' means the Data Protection Act, 2012 of the Republic of Ghana, and any regulations issued by the Data Protection Commission (DPC).

2.2 'Controller' and 'Processor' have the meanings ascribed to them under Act 843.

2.3 'Personal Data' refers to any information relating to an identified or identifiable individual processed on the Skoola platform.

SECTION 3

SCOPE AND CATEGORIES OF DATA

3.1 CATEGORIES OF DATA SUBJECTS: The data subjects are the students (minors), parents, guardians, teachers, and school administrators of the Controller.

3.2 TYPES OF PERSONAL DATA: Student grades, attendance logs, biographical details (names, dates of birth), parent phone numbers, email addresses, staff employment details, and billing logs.

SECTION 4

OBLIGATIONS OF THE PROCESSOR

4.1 INSTRUCTIONS: The Processor shall process personal data only on documented, written instructions from the Controller, unless required by Ghanaian law.

4.2 CONFIDENTIALITY: The Processor ensures that all personnel authorized to access and process the personal data are bound by strict contractual confidentiality agreements.

4.3 COMPLIANCE: The Processor will inform the Controller if, in its opinion, any instruction violates Act

843.

SECTION 5

SUB-PROCESSORS

5.1 GENERAL CONSENT: The Controller grants the Processor general authorization to engage sub-processors (e.g. cloud hosting providers and SMS notification gateways) to deliver the service.

5.2 LIABILITY: The Processor will impose the same data protection obligations on its sub-processors and remains fully liable to the Controller for the performance of the sub-processor's obligations.

SECTION 6

ASSISTANCE TO THE CONTROLLER

6.1 DATA SUBJECT RIGHTS: The Processor will assist the Controller through technical measures to respond to requests from data subjects exercising their rights under Act 843 (e.g., access or deletion).

6.2 SECURITY & AUDIT: The Processor will assist the Controller in ensuring compliance with security, breach notifications, and prior consultations with the Data Protection Commission.

SECTION 7

TECHNICAL SECURITY MEASURES

7.1 The Processor shall implement and maintain appropriate technical and organizational measures to protect personal data against accidental loss, unauthorized disclosure, or access.

7.2 These measures include database encryption at rest, secure SSL/TLS protocols in transit, role-based portal logins, and daily incremental backups.

SECTION 8

AUDITS & COMPLIANCE PROOFS

8.1 The Processor agrees to provide the Controller with all information necessary to demonstrate compliance with this DPA.

8.2 The Processor will allow for and contribute to audits, including inspections, conducted by the Controller or an independent auditor mandated by the Controller, at the Controller's sole expense.

SECTION 9

BREACH NOTIFICATIONS

9.1 The Processor shall notify the Controller within seventy-two (72) hours of confirming any accidental or unauthorized access, leakage, or breach of the Controller's personal data.

9.2 The notification will describe the nature of the security incident, categories of data compromised, remediation steps taken, and points of contact.

SECTION 10

DATA RETURN & DESTRUCTION

10.1 Upon termination of the main Service Agreement, the Processor shall, at the choice of the Controller, return or delete all personal data within thirty (30) days.

10.2 Once the deletion period is completed, all data backups and operational servers will be permanently wiped, and the Processor shall provide a certificate of destruction upon request.

EXECUTION & SIGNATURES

By signing below, both parties acknowledge that they have read, understood, and agreed to all terms and conditions contained in this Data Processing Agreement.

FOR THE PROCESSOR - OHENEBA MEDIA

Signature: _____

Name: Mr. Oheneba Michael Baah (Owner & Software Proprietor)

Date: _____

FOR THE CONTROLLER - THE SCHOOL

Signature: _____

School Name: _____

Representative Name: _____

Designation: _____

Date: _____